

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2025

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

The Management of Auto Spare Garage of the City of Monrovia,)
Republic of Liberia.....Appellant)
Versus) Appeal

Mohammed Heyek of the City of Monrovia, Montserrado County,))
Republic of Liberia.....Appellee)

GROWING OUT OF THE CASE:

The Management of Auto Spare Garage of the City of Monrovia,)
Republic of Liberia.....Petitioner)
Versus) Petition for Judicial
Review

Mohammed Heyek of the City of Monrovia, Montserrado County,))
Republic of Liberia.....Respondent)

GROWING OUT OF THE CASE:

Mohammed Heyek of the City of Monrovia, Montserrado County,))
Republic of Liberia Complainant)
Versus) Unfair Labor Practices

The Management of Auto Spare Garage of the City of Monrovia,)
Republic of Liberia.....Defendant)

Heard: November 17, 2025

Decided: December 18, 2025

MR. JUSTICE KANNEH DELIVERED THE OPINION OF THE COURT

On September 16, 2024, Mr. Mohammed Hayek, appellee, by and thru his legal counsel filed a complaint of unfair labor practice and wrongful dismissal with the Ministry of Labor against the Auto Spare Garage, appellant herein. The appellee basically alleged that he had worked for the Auto Spare Garage as Chief Mechanic for a period of seven (7) years spanning from 2016 to 2023; that during the course of his employment with Auto Spare Garage, he maintained a cordial relationship with his employer until the end of November 2023 when he (appellee) fell ill on the premises of the appellant while performing his assigned task; that due to his health concerns, he visited several medical facilities to include Jahmale Medical Solutions where he was advised by Dr. Lawrence M. Sherman to seek advanced medical treatment abroad; that upon receipt of his medical report from Jahmale,

he immediately presented same to his employer and requested a leave of absence to cater to his health; and that the Management of Auto Spare Garage upon review of his medical report, approved his leave of absence to address his health concerns. However, the duration of the leave is a subject of contention between the appellant and the appellee. We shall say more on this later in this Opinion.

The appellee further contends that while he was abroad seeking advanced medical treatment, he regularly contacted the Manager of Auto Spare Garage, his immediate supervisor, to update him about the status of his health; that on January 8, 2024, he had a forty-minute conversation with the Management of Auto Spare Garage via WhatsApp, during which conversation the appellant surprisingly inquired about his return date and whether he was still interested in working with the appellant; and that following the WhatsApp conversation, he received a letter dated January 15, 2024, from the appellant Management terminating his contract.

The appellant, for its part insists that the dismissal of the appellee was due to his failure to return to work after his leave period expired in violation of Section 14. 3 (d) (vii) of the Decent Work Act (2015) which states that an employee can be dismissed for absence from work for more than ten (10) consecutive days or more than 20 days over a period of six (6) months without good cause or explanation.

The hearing officer, having reviewed the complaint, issued several notices of assignment on diverse dates citing the parties for the hearing of the case. The records revealed that only one of the numerous notices of assignment issued by the hearing officer was honored by the appellant, prompting the hearing officer to sternly warn the appellant regarding its failure to appear for the hearing after being duly served notices of assignment. Despite the said warning by the hearing officer, the appellant deliberately refused to appear for the hearing, prompting the appellee to make an application for default judgment which was granted by the hearing officer. The appellee then proceeded to provide evidence in support of its claims. Following the production of evidence by the appellee, the hearing officer rendered his ruling, an excerpt of which ruling we quote as follows to wit:

“The facts observed in these proceedings reveal that the complainant, Mr. Mohammed Hayek was employed by Auto Spare Garage in January of 2016 and October 2, 2023, Mr. Mohammed Hayek had a severe pandemic pain, vomiting and with severe fever. He was rushed to Dr. Sherman’s Clinic, Ducor

Wisher for treatment. After the medical examination was conducted, Dr. Sherman referred Mr. Mohammed Hayek to the Jahmale Medical Solution for ultra sound. Upon the receipt of the medical report from Jahmale Medical Solutions, it was taken to Dr. Sherman for proper interpretation. After Dr. Sherman reviewed the medical report from Jahmale Medical Solution, he told Mr. Mohammed Hayek that he had a serious medical concern which means he was suffering from Gall Bladder Pope. Dr. Sherman again prescribed another medical examination and Mr. Mohammed Hayek went back to Jahmale Medical Solution for said examination.

The report from the examination was again back to Dr. Sherman of Ducor Wisher, who based on the medical report advised that Mr. Mohammed Hayek to travel abroad as soon as possible for medical attention or surgery. Mr. Mohammed Hayek requested for his annual leave in December of 2023 and it was granted by the Management of Auto Spare Garage on December 25, 2023 for 26 days and Mr. Mohammed Hayek was dismissed on January 15, 2024, while on his leave.

While in the employ of Auto Spare Garage, Mr. Mohammed Hayek worked from 8:am to 5: p.m. daily and worked from 8: a.m. to 2: p.m. on Saturdays. He also has outstanding leave from 2017, 2018, 2019 and 2020 respectively. He also worked 51 hours a week instead of 48 hours consistent with the Decent Work Act of 2015. Hence our Ruling:

Ruling

After a careful observation of the witness's testimonies, evidence adduced during trial, the facts and surrounding circumstances, we hold the conviction that the complainant is being wrongfully discharged from the employ of Auto Spare Garage based on malice, hatred and prejudice and said dismissal is also pregnant with falsehood and miscarriage of poor administrative errors. It is therefore, our holding and conviction that the defendant/Auto Spare Garage pay the complainant an aggregate of 14 months of his salary, a month's salary in lieu of notice, outstanding leave and overtime."

The appellant, being dissatisfied with the decision of the hearing officer, filed a twenty-count petition for judicial review before the National Labor Court. The trial judge, having reviewed the evidence and listened to the testimonies of the parties, on June 2, 2025, rendered his final ruling affirming the decision of the hearing officer.

We quote also excerpts from the trial judge's ruling on the petition for judicial review:

"The petitioner strongly argued before this court that they were not accorded due process as required by the Constitution. Counsel for petitioner claimed that the Hearing Officer in total disregard of due process law and the constitutional rights available to them, to defend the suit circumvented the constitutional requirement of individual persons and the law in this jurisdiction. Counsel contended that no chance of final appearance was afforded to them prior to granting the motion for default judgment. He concluded that the Hearing Officer demonstrated bias and prejudice, proceeded and granted defaulted judgment against petitioner without any due process of law because petitioner was on the witness stand testifying in the defense of the suit brought against them.

Due process is a legal principal that issues fair treatment through the normal Judiciary system especially as a citizen's right. It is a safeguard against arbitrary denial of life, liberty, or property. This includes the right:

To being given notice of legal actions
Have an opportunity to be heard
Have a fair and impartial decision-maker

In the instant case, this court disagrees with the petitioner that they were not afforded due process because petitioner admitted that a notice of assignment was served to afford them the opportunity to be heard, which they failed stating that when the notice of assignment was served, they were engaged in a four (4) days unavoidable cooperate duties at the Robert International Airport which begun from the 4th to the 8th, 2025. See count 11 of Petitioner's Petition, hence they cannot claim that they were not afforded due process.

That as to issue number two (2) this Court says the granting of a default judgment by the Hearing Officer was in keeping with law in that the case filed clearly indicates that the petitioner was warned by the Hearing Officer after so many failures to attend on excuses. The records as contained in the case showed that the respondent had already testified and rested it side of the case.

The petitioner took the witness and thereafter failed and neglected to appear after two notices of assignment. It is

also observed that the petitioner had absent themselves with numerous excuses which led to the Hearing Officer granting a default judgment. From the granting of the default judgement, petitioner's counsel argued that the Hearing Officer was in error to grant the said default judgment because they were on the witness stand and therefore they should have been allowed to complete their testimonies.

The transcribed records showed that the petitioner only honored one assignment out of more than twelve which promoted the Hearing Officer to grant the said default judgment. The Supreme Court in the case: Vijayaraman Vs. Management of Xaonoi Liberia. Ltd., 42 LLR page 41 (2004) held that "A default judgment may be granted if a defendant fails to appear on notice of assignment issued for hearing of a case. It may be granted even after the defendant has testified at the hearing. Section 9.4 of the Decent Work Acts. Consequences of respondent's failure to attend hearing.

Where a respondent fails to attend a hearing, the Ministry may provide a further opportunity for the respondent to attend another hearing. Such notice shall require the respondent to attend a further hearing before the Ministry at a time and place to be specified in such notice.

If a respondent fails to appear at a hearing on two or more occasions in connection with the same complaint, the Ministry may proceed to make a decision without further delay in accordance with Section 9.5.

In its decision, the Ministry shall attach proof of service of the notices and complaint, and shall provide a concise statement of the respondent's failure to attend.

The records showed that the petitioner was afforded enough opportunities to attend hearings, petitioner failed to appear more than two times and there are sufficient evidences of the proof of services of the notices of assignment. This clearly demonstrates that the Hearing Officer was justified in granting a default judgment despite the petitioner had begun to testify.

This court also observed that the defendant witness had said that the respondent requested his annual leave and the

said leave was granted from December 25, 2023 for 26 days but the dismissal letter indicates that the respondent was dismissed on the 15th day of January 2024, when the said 26 days of his leave was not completed. The respondent's vacation should have ended on the 20th day of January 2024 but he was dismissed just after 21 days into the vacation."

Again, the appellant noted exceptions to the ruling of the trial judge, filing a six-count bill of exceptions, outlining the alleged errors committed by the trial judge. It is the law that the Supreme Court need not pass on every issue raised in a bill of exceptions, but only those that are germane to the determination of a case. *Olivia Newton v. Augustus D. Korruah*, Supreme Court Opinion, October Term, A. D. 2022; *CBL v. TRADEVCO*, Supreme Court Opinion, October Term 2012; *Knuckles v. TRADEVC*, 40 LLR 49,53 (2000); *Vargas v. Morns*, 39 LLR 18., 24 (1998); *LAMCO J.V. v. TRADEVCO*, 26 LLR 554 (1978). In consonance with the above-stated principle of law, we shall address counts 2, 4 and 6 of the appellant's bill of exceptions which we deem dispositive of the issues in this case.

2. Further as to count one herein above, Appellant/Petitioner says that the Hearing Officer ruling on the motion for default judgement was prejudicial because as stated by Appellant Petition for Judicial Review, Appellant/Petitioner only became aware of the hearing of the case on the very day the matter was assigned to be heard at which time Appellant's legal counsel was not aware of any such notice of assignment due to the time it was served on the witness. Appellants says for it to be considered that a party was given notice, the party must be duly served. Therefore, and in the instant case, it cannot be said that Appellant was duly served because said notice came just hours to the hearing of the case, although the hearing officer knew fully well that the witness and the lawyer needed time to prepare themselves for continuation of the witness testimony which was important to the determination of the case. Hence, Your Honor committed a reversible error by upholding the hearing officer's ruling granting

the motion for default judgment, especially so that trial of the case was already ongoing and that Appellant had already started producing witnesses.

4. That your honor committed a reversible error when in your ruling on the Petition for judicial review, you failed to consider Appellant's contention that the dismissal of the 2nd Respondent/ Complainant was proper and consistent with the provision of the Decent Work Act of 2025 which gives employers the right to dismiss an employee who is absent from work for ten consecutive days or twenty days in six months with a valid excuse. Section 14.3 (d) (vii) of the Decent work Act (2015) states "an employee has been absent from work for more than 10 consecutive days of more than 20 days over a period of 6 months without good cause or explanation.

6. Still further as to counts five and six hereinabove, Appellant says assuming without admitting that Complainant was actually sick and could not return after the expiration of his twenty days leave period, the onus was upon him to communicate with management as to the status of his health and in that cause negotiate for additional time. Also, Appellant says the leave granted complainant was not a sick leave, therefore, management had no reason to believe or know that he was actually sick or that he was anywhere seeking medical care, as it is a normal practice that during annual sick or that he was including complaint travelled out of Liberia is not sufficient that he was sick. Appellant further says the fact that Complainant sold the furniture in the apartment rented by him by Appellant/Petitioner and gave the keys of said apartment to an unknown person, denotes that he did not have any intention of returning to Liberia to

continue working the Petitioner. Hence, Your Honor having failed to consider this very important and unrebutted testimony of Appellant's witness but sided with the Hearing Officer and upholding his ruling awarding the sum of US\$73,976.00 to complaint, makes your honor's ruling on the petition for judicial review unsound in law and therefore reversible.

In count two (2) of the bill of exceptions, the appellant has contended that the trial judge made a palpable mistake by overlooking the fact that it (appellant) was not given timely notice of the proceeding against it because the notice of assignment was served on the appellant just hours before the hearing of the case.

Our review of the records reveals that the hearing officer issued twelve notices of assignment for the hearing of the present appeal; however, the appellant honored only one of the twelve notices of assignment for the hearings of the case. On each of the other eleven (11) occasions, the appellant provided a plethora of flimsy excuses which prompted the hearing officer to issue stern warning to the appellant for its deliberate failure to attend the proceedings. Even after the issuance of the warning by the hearing officer, the appellant continued its careless disregard for the proceeding by failing to attend the hearing after having received notices of assignment. This blatant refusal by the appellant to appear for the hearing and proffer its side of the case compelled the hearing officer to grant the appellee's request for default judgment. How now can the appellant claim that it did not receive adequate notice for the hearing of this case? Can a party who refuses to attend a hearing after being duly served notices of assignment contend that he has been denied his day in court?

This Court has held that due process is a fundamental right of every individual and is cardinal and an integral and significant part of our law and jurisprudence, with the essential elements being notice, and an opportunity given an individual to be heard and defend himself in an orderly proceeding adapted to the nature of the case; that the due process requirement under our law is satisfied where a party is afforded reasonable notice and an opportunity to be heard; that due process does not require the formalities of a court proceeding but necessitates a fair opportunity to present one's case; and that where a party deliberately refused to appear for a

hearing having been properly served notices of assignment, it cannot claim denial of its day in court. *Dennis et al. v. K & H Construction Company*, Supreme Court Opinion, March Term, 2008; *Harris v. Mercy Corps Liberia*, Supreme Court Opinion, March Term, 2006; *Cooper et al v Cooper Estate et al.*, 39 LLR 750, 757 (1999). *Broh v. House of Representative, et al*, Supreme Court Opinion, October Term 2015; *Kpaan v. Johnson et al*, Supreme Court Opinion, October Term, 2015; *Republic of Liberia v. Bernice Trading Center*, Supreme Court Opinion, October Term, 2014; *Chambers v. NEC et al*, Supreme Court Opinion, March Term, 2015; *Kruah et al v. Weah*, 42 LLR 148, 155-156 (2004).

Moreover, it is the law that once a case has not been completed the counsel of record is bound to honor all assignments issued and served on him until the case is finally decided or he will be presumed to have abandoned the case.” Civil Procedure Law Rev. Code 1:42.1; *Vijayaraman et al., v Xoanon Liberia Ltd.*, 42 LLR 47,56 (2004); *The Intestate Estate of the late Alihaji Massaquoi v. A.M.E Church*, Supreme Court Opinion, October Term 2014.

As to counts 4 and 6 which we consolidate, where the appellant maintains that the appellee’s dismissal was proper on grounds that he abandoned work for more than ten (10) consecutive days in violation with Section 14.3 (d) (vii) of the Decent Work Act (2015) which provides that the absence of any employee from work for more than ten (10) consecutive days or twenty days over a period of six (months) without good cause is a ground for dismissal and that assuming without admitting that the appellee was actually sick and could not return to work after the expiration of his twenty-six days leave period, the appellee should have communicated with the Management of Auto Spare Garage regarding the status of his health and negotiate for additional time.

We first take judicial cognizance of the fact that both the hearing officer and the trial judge upon reviewing the evidence in this case concluded that the annual leave granted the appellee by the Management of Auto Spare Garage began on December 25, 2023 and should have ended January 25, 2024, meaning that the appellee was granted one month’s leave. We further note from the records that the appellant’s counsel during the hearing of this case contended vehemently that the appellee’s leave period started November 25, 2025 and ended on December 25, 2025. Therefore, the dismissal of the appellee by the appellant was in consonance

with the Decent Work Act of 2015. However, a thorough review of the records revealed that this assertion of the appellant's counsel is contrary to the testimony of the appellant's first witness Mustapha Yassine. We quote excerpts from the testimony of the appellant's first witness as follows to wit:

QUES. Mr. witness, please tell this Investigation what do you do for living?

ANS. I work in Auto Spare service as General Manger Assistant.

QUES. Mr. Witness, Mr. Mohammed Hayek has filed a wrongful Dismissal complaint against the Management of Auto spare Garage for which you have come to testify for and on behalf of the Management. My question is, do you know Mr. Mohammed Hayek, The complainant in this case?

ANS. Yes, I Know him.

QUES. Mr. Witness, to the best of your knowledge and Recollection, please tell this investigation all that you know about the wrongful dismissal?

"Mr. Mohammed Hayek requested for an annual leave on December 25, 2023 which he was granted. On the basis of his leave, he collected his entitlement of 3,000. 00USD salary and \$1000.00USD for plane ticket. He was required to return back to the job after twenty-six (26) days, but he failed to come back or communicate about the reason that he did not comeback.

A simple mathematical calculation of the leave period granted the appellee as per the testimony of the appellant's own witness shows that the appellee's leave period should have ended January 25, 2024. Moreover, this testimony by the appellant's witness aligns with the findings by both the hearing officer and the trial judge. It is the law that all admissions made by a party himself or by his agent acting within the scope of his authority are admissible as evidence against him. *Tubman v. Tubman*, Supreme Court Opinion, March Term, 2025. Hence, the appellant's own witness having testified that the appellee's annual leave began on December 25, 2023, said testimony is deemed an admission by the appellant that the appellee's annual leave indeed started on the said date and we so hold.

Moreover, the proper forum for the appellant to have raised counterclaims to the issues proffered by the appellee was before the hearing officer. This singular act would have permitted the hearing officer to take evidence regarding these issues, and make a determination thereon and if adverse to the interest of the appellant,

the appellant would have had the opportunity to note exceptions to the said adverse ruling for appellate review. This, not having been done by the deliberate refusal of the appellant to appear for the hearing and file its response to the issues raised by the appellee, same constitutes a waiver. A waiver under our law is the voluntary and intentional relinquishment of a known right which, except for such waiver, the party would have enjoyed; it implies an election by a person to knowingly dispense with something of value or to forego some right or advantage which he might, at his option, have demanded or insisted upon; a waiver also operates to preclude a subsequent assertion of a right waived or any claim based thereon. *Juah v. Konneh*, 42 LLR 187, 191 (2004); *Kruah v. Weah*, 42 LLR 148, 152 (2004).

Regarding the appellant's contention that the appellee should have communicated with the Management of Auto Spare Garage as to the status of his health and negotiate for additional time if he knew he would have exceeded his annual leave period, this Court reiterates that the appellant denied itself the opportunity to address issues surrounding the duration of the leave by deliberately refusing to appear for the hearing after having been served notices of assignment. Hence, we will not belabor this issue. Furthermore, we take judicial cognizance of the fact that the appellee during the hearing at the Ministry of Labor maintained that while he was abroad he regularly communicated with the Manager of Auto Spare Garage regarding the status of his health, taking due note of the fact that his leave period would have ended January 25, 2024. This allegation was never denied nor rebutted by the appellant. It is the law that "allegations not denied are deemed admitted." In *Re: Contempt Proceedings Against Daniel Tubman et. al*, Supreme Court Opinion, October Term, A.D. 2022; *TIC v. MOJ*, 42 LLR 174, 178 (2004). Hence, the Management of Auto Spare Garage not having denied being informed by the appellee as to the status of his health, it is deemed an admission that the Management of Auto Spare Garage regularly contacted the appellant as to the status of his health.

Before concluding this Opinion, we see from the records that the hearing officer awarded fourteen months' salary for the wrongful dismissal of the appellee; Six Thousand Seven Hundred Fifty United States Dollars for four years leave not taken; Twenty-Two Thousand One Hundred Seventy-Six United States Dollars for seven years overtime pay. It is the law that the Supreme Court will only affirm an award in a manner commensurate and warranted by a preponderance of

evidence. *Firestone Liberia Inc. v. G. Galimah Kollie*, Supreme Court Opinion, March Term, A.D. 2012.

It is also the law that "the failure of a party, upon service of process, to appear, file or proceed to trial, is a ground for a default judgment against the defaulting party. Chapter 42, section 42.1, 1LCL Revised, Civil Procedure Law. This is the practice in the lower courts. However, this Court has said that the granting of a default judgment does not necessarily end the matter; it does not entitle the complainant to relief without proof of the allegations set forth in his pleading and a final judgment cannot be rendered on a default judgment without proof of the allegations in the pleading. *The Management of Forestry Development Authority v. Walters*, 34 LLR, 777. This Court has also held that "A default judgment is an imperfect judgment that must be made perfect by the production of sufficient evidence by the plaintiff in substantiation of his claim". *Salala Rubber Corp. v. Garlawolu*, 39 LLR 609.

This Court has also opined in a long line of Opinions that mere allegations cannot constitute proof without being supported by evidence, because it is evidence alone which enables the court, tribunal, or administrative forum to pronounce with certainty the matter in dispute. *Universal Printing Press v. Blue Cross Insurance Company*, Supreme Court Opinion, March Term A.D. 2015.

Taking due note of the above-cited principles of law, we now proceed to review the records. Our research of the records shows that the hearing officer properly ruled granting the appellee fourteen months' salary for wrongful dismissal. This Court has held that where wrongful dismissal is established, the [Labor Court] shall have the power to order reinstatement, but may order payment of reasonable compensation to the aggrieved employees in lieu of reinstatement. The party against whom the order is made shall have the right of election to reinstate or pay such compensation. In assessing the amount of such compensation, the Labor Court shall have regard to:

- a) (i) reasonable expectation in the case of dismissal in a contract of indefinite duration; (ii) but in no case shall the amount awarded be more than the aggregate of two years' salary or wages of the employee computed on the basis of the average rate of salary received six months immediately preceding the dismissal. However, if there are reasonable grounds to affect

a determination that the dismissal is to avoid the payment of pension, then the court may award compensation of up to not exceeding the aggregate of 5 years' salary after six (6) months immediately preceding the dismissal.

However, we do not find support for the hearing officer's award of Six Thousand Seven Hundred and Fifty United States Dollars (US\$6,750.00) for four years leave not taken by the appellant and Twenty-Two Thousand One Hundred Seventy-Six United States Dollars (US\$2,176.00) for seven years overtime pay. Hence, this Court being authorized to render the decision that should have been rendered by the lower court, holds that the facts and circumstances surrounding the appellee's dismissal support an application of compensation for eighteen months, that his monthly salary been Three Thousand United States Dollars (US\$ 3,000.00) multiplied by eighteen months, making a total of Fifty-four Thousand United States Dollars (US 54,000.00). In addition thereto, this Court affirms the amount of one-month salary in lieu of notice same being, Three Thousand United States Dollars (US\$3,000) making a grand total of Fifty-Seven Thousand United States Dollars (US\$57,000).

WHEREFORE AND IN VIEW OF THE FOREGOING, the trial court's final ruling is affirmed with the modification that the appellant pays to the appellee the amount of Fifty-Seven Thousand United States Dollars (US 57,000.00) instead of Seventy-Three Thousand Nine Hundred Twenty-Six United States Dollars (US\$73, 926.00). The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and enforce the Judgment of this Opinion. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Counsellors J. Augustine Toe of the offices of Sayeh & Sayeh appeared for the appellant. Counsellor Eric Morlu of the Jones & Jones Law Firm appeared for the appellee.